



File No.: EXP202413650

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on July 29, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On July 29, 2024, a complaint was received by this Agency submitted by A.A.A. (hereinafter, the complainant) against BANKINTER, S.A. (hereinafter, the respondent) for not having adequately addressed the right to erasure.

The complainant states that on May 10, 2024, they initiated a process to open a digital account with BANKINTER, S.A., the respondent, providing numerous personal data for this purpose.

The complainant reports that, due to a system error, the account opening process was not completed, and therefore, on May 21, 2024, they requested the cancellation of their application, as well as the subsequent erasure of their personal data that had already been provided. On May 29, 2024, they received a response indicating that once they request the cancellation of the account opening, it would be canceled within 24-48 hours, with the complainant reiterating their request on June 3, 2024.

Furthermore, they indicate that on June 18, 2024, they contacted the data protection department of the respondent and requested the erasure of their personal data, without having received a response within the legally established timeframe. They provide:

- A copy of the "Customer Knowledge Questionnaire" from Bankinter, dated 10/05/2024, which contains the complainant's personal data (Name and surname, Address, ID number, ...), Contact details, employment data, as well as "(...) the options that best fit the purpose of their commercial relationship with Bankinter."

- A thread of exchanged emails between the parties:

- o 20/05/2024: From the complainant to the respondent: "Know the status of a request."

- o 21/05/2024: From the respondent to the complainant: "(...) Regarding your inquiry, I must inform you that for security reasons and due to the general data protection regulation, we cannot provide or operate with personal information via email, as this channel is for inquiries only. However, if you contact us by phone, we will be happy to provide you with that information and assist you with any other inquiry or operation you need to carry out. Please contact us at the phone number (...) with your personal access code (CAP) and your coordinate card during the hours of (...)."

- o 21/05/2024: From the complainant to the respondent: "(...) As I already indicated by phone, please proceed to cancel the account opening process, as well as to delete my personal data or any other document submitted to the process or that you have of mine, executing my right to erasure of personal data according to LGPD."

- o 22/05/2024: From the respondent to the complainant, identical response to that sent on 21/05/2024 indicating that, for security reasons, they cannot provide personal information.

- o 23/05/2024: From the complainant to the respondent: Reiterates the request for erasure already sent on 21/05/2024.

- o 27/05/2024: From the respondent to the complainant: Identical response to those sent on May 21 and 22, 2024.

- o 28/05/2024: From the complainant to the respondent: "Thank you, I already did it, but you do not confirm whether you did what was discussed. A Yes or a No is not confidential information."

- o 29/05/2024: From the respondent to the complainant: "(...) In reference to your inquiry, if you request the cancellation of the account opening, it will be canceled within 24-48 hours from the time you request it. (...)"

- o 03/06/2024: From the complainant to the respondent: "Thank you for the client matter, but I have never been a client of your entity. What I want, once the account application process is canceled, is the deletion of the documents submitted in the process, as well as any other personal data you have of mine. (...)"

- An email dated June 18, 2024, from the complainant to the address privacidad@bankinter.es indicating that:

“ I would like to exercise my right to erasure of personal data and any other document provided in the process of creating the bank account required by you, such as the 2023 Income Tax Declaration, etc., since this Account Opening will not be created. I attach a request for you to proceed with the deletion of all my data (...).”

- A form for the right to erasure before Bankinter, S.A. dated June 18, 2024.

SECOND: In accordance with Article 65.4 of the LOPDGDD, this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

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The notification of the transfer of the claim, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was made on 14/10/2024 as stated in the acknowledgment of receipt in the file.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the claiming party were satisfied. Consequently, on November 13, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the claim for processing.

The aforementioned agreement granted the claimed party a hearing procedure, so that within ten working days it could present the allegations it deemed appropriate.

FOURTH: On November 13, 2024, a document was received in this Agency submitted by the claimed party, in response to the transfer of the claim made by this Agency, indicating that

“(…) FIRST.- Regarding the causes that motivated the incident that originated the claim.

First of all, we would like to indicate that the connection of the Claimant with Bankinter originates as a result of a process to open a digital account at the Entity, initiated on May 10, 2024.

As a result of the above, and as indicated in his claim letter, on May 20, 2024, Mr. B.B.B. contacted the Entity through the email address bankinter_responde@bankinter.com, which operates solely for consultative purposes, in order to know the status of the account opening process mentioned. (…)

On the other hand, additionally, the Claimant requested on May 20, 2024 – the same day he sent the aforementioned email – telephone assistance from Bankinter through its “call me back” service. As a result, the Telephone Attention Service contacted him that same day to address his request. This call me back was intended to request the cancellation of the previously mentioned account opening process, as well as the subsequent deletion of his personal data. As such, this request was registered in the Entity's systems, as can be seen in the attached screenshot:

The document contains an excerpt from a list that shows:

Date 20/05/2024, Start Time (...), End Time (...), Termination “(…)” Observations: “(…)”

The claimed party continues that “(…) In this way, Bankinter confirmed in that call to the Claimant the receipt of his request and proceeded to carry out the procedures

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necessary to carry out the cancellation of the referred process and the deletion of his personal data, with its processing being effective in the Entity's internal systems on May 21, 2024. The image extracted below from the Entity's internal systems certifies the cancellation of the digital account opening process,” showing a Diagram of “How the process is going,” which states “Completed due to

abandonment.”

“(…) Continuing with the chronological order of events, the Claimant proceeded to send a new communication on May 21, 2024, to the email address bankinter_responde@bankinter.com, in which he reiterated his request for the cancellation of the bank account opening process, as well as the deletion of his personal data, in accordance with what was requested during the phone call held with the Entity the day before:

“(…) Regarding this matter, as the Claimant certifies in his communication, the request for the cancellation of the opening process and the consequent deletion of his personal data had already been made to the Entity on May 20, 2024, by telephone, with Bankinter having confirmed to the Claimant during the call the initiation of the corresponding procedures. In this regard, the Entity did not send a written response to the Claimant since he had already been informed of the attention to his right during the aforementioned phone call.

Subsequently, and as the Claimant substantiates in his complaint, on June 18, 2024, he sent a request for the deletion of his personal data to Bankinter, without having received any response from the Entity within the legal period of one month. It is from this moment that the Claimant filed a complaint with this AEPD on July 29, 2024 (hereinafter the “Complaint”).

However, we must inform the Agency that this communication could never be received by Bankinter, as the email address to which the Claimant directed his request turned out to be incorrect. This is because the Claimant sent his email to the address privacidad@bankinter.es while the correct address is privacidad@bankinter.com.

- Attached as Document 1 is the communication sent by the Claimant, which he also provided as Annex 2 to his Complaint. For ease of understanding, the previously described error has been highlighted in the referenced document.

Regarding this matter, it should be noted that, to the extent that the email address to which the Claimant directed his request does not belong or did not belong to the Entity, it was not possible to send him a timely response to his communication.

- Attached as Document 2 is one of the contractual documents signed by the Claimant during the digital account opening process, in which the means provided by Bankinter to address rights related to data protection and privacy are identified.

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Therefore, as a consequence of this error, Bankinter did not receive the request from the Claimant. However, as previously determined and as indicated to the Claimant during the telephone conversation held with the Customer Service on May 20, 2024, the Entity proceeded to address their right in a timely manner.

SECOND. - Regarding the request for rights made by the Claimant.

As a result of the error in the email address indicated in the previous point, the request sent by the Claimant to Bankinter for the deletion of their personal data on June 18, 2024 – which is the basis for the Complaint filed with the AEPD – was never received by the Entity and, therefore, Bankinter could not respond to it in a timely manner. However, despite the confusion that occurred, to the extent that the Claimant requested through the Customer Service on May 20, 2024 the cancellation of the account opening process and the consequent deletion of their personal data, Bankinter proceeded, as indicated during the call, to address the right, which involved the proper blocking of the personal data, having adopted technical and organizational measures within the Entity to reinforce the confidentiality and security of this information.

THIRD. - Regarding the response provided to the Claimant's request to exercise rights.

As previously indicated, Bankinter, as soon as it became aware of the first request for the cancellation of the account opening process mentioned during the telephone call with the Claimant on May 20, 2024, proceeded to carry out the necessary procedures to address it, with their personal data

effectively blocked the following day, on May 21, 2024.

In relation to this matter, as previously determined, the agents who attended to the Claimant confirmed to them the initiation of the procedures related to the cancellation of the process and the deletion of their personal data in Bankinter's internal systems.

On the other hand, regarding the second request for the deletion of their personal data – directed to the Entity on June 18, 2024, to an incorrect mailbox – Bankinter proceeded to send a formal response to the Claimant, with this communication being sent to their address on November 7, 2024.

- Attached, as Document 3, is the formal response sent to the Claimant by Bankinter.

As can be seen in the provided response, on one hand, Bankinter informed the Claimant of the reason why it could not address their request dated June 18, 2024, since, due to an error, their request was directed to an email address that does not belong to or has ever belonged to the Entity, and on the other hand, confirmed to the Claimant that it had addressed their request for the right to deletion of their personal data exercised in their communication with Customer Service on May 20, 2024.

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FOURTH. - Regarding the blocking of the Claimant's personal data.

As indicated in the previous lines, to the extent that the Claimant requested telephone assistance from Bankinter through its "call me back" service on May 20, 2024, which call was based on the need to initiate the cancellation of the digital account opening process and the consequent deletion of their personal data, the Entity proceeded without undue delay, that is, the next day, on May 21, to block their personal data.

(...)

"(...) As previously indicated, once Bankinter became aware of the Claimant's request sent to the incorrect mailbox privacidad@bankinter.es regarding the Transfer of Claim and Request for Information, the Entity proceeded to send a formal response to the Claimant on November 7, 2024. Document 3 is attached hereto as evidence of the response provided by Bankinter to the Claimant." The responding party provides:

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Doc 1: Email dated 06/18/2024 from the Claimant to the responding party in which they exercise the right to deletion of their personal data (previously submitted by the Claimant along with the claim).

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Doc. 2: "Customer Knowledge Questionnaire" (previously submitted by the Claimant along with the claim).

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Doc. 3: Written communication dated 11/07/2024 from the responding party addressed to the Claimant informing them that:

"(...) After conducting the appropriate internal analysis of your claim, we would like to indicate, first of all, that, as we understand, you initiated a process for the opening of a digital account at Bankinter on May 10, 2024.

In this regard, concerning the documentation provided in your claim as Annex 1, you contacted our entity on May 20, 2024, through the mailbox bankinter_responde@bankinter.com, set up by Bankinter for consultative purposes, with the aim of knowing the status of the account opening process.

On the other hand, additionally, you requested telephone assistance from Bankinter through its "call me back" service on May 20, 2024 – the same date on which you sent the aforementioned email – and, as a result, the Telephone Customer Service contacted you that same day to address your request.

In that communication, you informed us of your desire to proceed with the cancellation of the digital account opening process and the consequent deletion of your personal data.

Regarding the cancellation of the contracting process, and in relation to your initial inquiry regarding the opening of the account, sent on May 20, 2024 to

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Email: bankinter_responde@bankinter.com, Bankinter proceeded to respond to it the following day, in which communication - as well as in the subsequent ones sent between May 27 and June 5 of the mentioned year - it was informed that, in accordance with the security measures implemented in the entity, email is not an appropriate channel to ensure an adequate level of security in the sending of documentation or personal information.

Finally, regarding your request for the deletion of your personal data addressed to Bankinter on June 18, 2024, we inform you that the entity was not aware of the referenced request until the receipt of your complaint filed with the AEPD. The reason for this is that the email address to which you sent your request does not belong to our banking entity.

Indeed, and as can be seen in the documentation provided in your complaint to the AEPD as Annex 2, you sent your request to the email address privacidad@bankinter.es, which does not belong to or has ever belonged to Bankinter, the correct address being privacidad@bankinter.com. As an inevitable consequence of the above, Bankinter could not receive your communication at the referred date and address and, therefore, could not respond to it.

Notwithstanding the above, and despite the confusion that occurred, to the extent that Bankinter proceeded to address the right to deletion of your personal data exercised in your communication with the Telephone Attention Service on May 20, 2024, through this letter we confirm again that, in fact, they have been blocked since May 21, 2024.

For all the above, we want to confirm to you, through this letter, that your personal data is blocked so that your data cannot be processed in any way, including its viewing. The above means that your data will only be retained for the formulation, exercise, or defense of claims and to be made available to Judges and Courts, the Public Prosecutor's Office, or the competent Public Administrations, in order to address possible liabilities and only during the statute of limitations for them, being deleted upon its conclusion, always in accordance with the provisions of current regulations.

Finally, we remind you that at Bankinter we place great importance on the privacy and security with which personal data is handled, so we remain at your disposal for any questions or additional issues you may require."

FIFTH: On November 21, 2024, the responding party submitted a document to this Agency stating that, on November 13, 2024, it had submitted allegations regarding the transfer of the complaint made by this Agency, providing a copy of said document, already mentioned in point Fourth of these Facts.

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SIXTH: After examining the document submitted by the responding party, dated January 10, 2025, it is forwarded to the claiming party, so that, within a period of ten working days, they may formulate any allegations they deem appropriate, noting that no response has been submitted to this Agency.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Presidency of the Spanish Data Protection Agency is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding the obligations that pertain to them, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, it was forwarded to the responding party for analysis, to respond to this Agency within one month, and to demonstrate that they had provided the claimant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the claiming party were satisfied. Consequently, on October 29, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure for failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

“When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their complaint to be upheld.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers to correct any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the statements made in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to state their reasons in case they do not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

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IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase the personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers who are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply where the processing is necessary:

- a) for exercising the right to freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to make impossible or seriously impair the achievement of the objectives of that processing, or
- e) for the establishment, exercise or defense of legal claims."

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V

Conclusion

Before analyzing the substance of the matter, whether the right to erasure of the personal data of the claimant has been duly addressed or not, it should be noted that, following the statements of the respondent indicating that it had submitted a written response to this Agency regarding the transfer of the complaint made by this body, the present file has been re-examined and it has been verified that, on November 13, 2024, the same day that the Director of this Agency signed the Admission to Processing, a written response was received by this Agency.

In the present case, and taking into account the aforementioned statements, documentation related to two requests for erasure submitted by the claimant has been provided:

- On May 20, 2024, it has been established that the claimant requested the respondent to erase their personal data via email, and that the respondent replied indicating that, for security reasons, that was not the appropriate channel, and that the request should be made by contacting them by phone, using

their access credentials.

During the instruction of the procedure, the respondent stated that "(...) the consequent erasure of their personal data was already carried out by the Entity on May 20, 2024, via telephone, with Bankinter confirming to the Claimant during the call the initiation of the corresponding procedures. In this regard, the Entity did not send a written response to the Claimant since they had already been informed of the attention to their right during the aforementioned telephone call."

- On June 18, 2024. Regarding this request, the respondent indicates that "(...) However, we must inform the Agency that this communication could never have been received by Bankinter, as the email address to which the Claimant directed their request turned out to be incorrect. This is because the Claimant sent their email to the address privacidad@bankinter.es while the correct address is privacidad@bankinter.com.

(...) On this matter, it should be noted that, to the extent that the email address to which the Claimant directed their request does not belong or did not belong to the Entity, it was not possible to send them a timely and proper response to their communication."

"(...) As previously indicated, once Bankinter became effectively aware of the Claimant's request sent to the incorrect mailbox privacidad@bankinter.es due to the Transfer of Complaint and Request for Information, the Entity proceeded to send the formal response to the Claimant on November 7, 2024. Attached to this document as Document 3 is the communication that certifies and evidences the response provided by Bankinter to the Claimant."

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In said document, the responding party indicates, in summary, that following your telephone call dated May 20, 2024, they proceeded to cancel the hiring process and to delete your personal data:

"(...) Lastly, regarding your request for the deletion of your personal data addressed to Bankinter on June 18, 2024, we inform you that the entity was not aware of the referenced request until the receipt of your complaint filed with the AEPD. The reason for this is that the email address to which you sent your request does not belong to our banking entity.

Indeed, as can be observed in the documentation provided in your complaint to the AEPD as Annex 2, you sent your request to the email address privacidad@bankinter.es, which has never belonged to Bankinter, the correct address being privacidad@bankinter.com. As an inevitable consequence of the above, Bankinter could not receive your communication at the referred date and address and, therefore, could not respond to it.

Notwithstanding the above, and despite the confusion that occurred, to the extent that Bankinter proceeded to address the right to deletion of your personal data exercised in your communication with the Telephone Customer Service on May 20, 2024, we hereby confirm again that, indeed, your data has been blocked since May 21, 2024.

For all the above, we want to confirm to you, through this document, that your personal data is blocked so that your data cannot be processed in any way, including its viewing. The above means that your data will only be retained for the formulation, exercise, or defense of claims and for its availability to Judges and Courts, the Public Prosecutor's Office, or the competent Public Administrations, in order to address possible liabilities and only during the statute of limitations for the same, being deleted upon its conclusion, always in accordance with the provisions of the current regulations.

Finally, we remind you that at Bankinter we place great importance on the privacy and security with which personal data is handled, so we remain at your disposal for any doubts or additional questions you may have."

The aforementioned regulations do not allow the request to be overlooked as if it had not been made, leaving it without the response that the responsible parties must issue, even in the event that there are no data of the interested party in the entity's files or even in those cases where the requirements set forth are not met, in which case the recipient of such request is also obliged to require the correction of the observed deficiencies or, where appropriate, to deny the request with justification indicating the

reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response, in any case, using any means that justifies the receipt of the response.

In this case, however, it is noted that during the processing of the complaint that gives rise to this procedure, formulated precisely due to the lack of an adequate response to the request for the exercise of rights, the responding party has provided documentation proving the communication sent to the interested party addressing the right or informing about the decision made regarding the request. This response, therefore, occurs after the established deadline has been exceeded.

In this regard, it should be clarified that the response that corresponds to be made cannot be expressed merely as part of an administrative procedure. Consequently, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, combining the information in the file with the regulations referred to in the preceding sections, it is appropriate to uphold the present complaint on formal grounds due to the response being issued late, without requiring the responsible party to carry out additional actions in order to issue a new certification regarding the attention to the right.

In view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD on formal grounds, the complaint filed by A.A.A., against BANKINTER, S.A.

However, it is not appropriate to issue a new certification by the responding party, as the response was issued late, without requiring the responsible party to carry out additional actions.

SECOND: TO NOTIFY this resolution to A.A.A. and to BANKINTER, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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